

STATE OF NEW YORK

476--A

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. CLARK -- read once and referred to the Committee on Local Governments -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general municipal law, the general city law, the town law, and the village law, in relation to requiring certain municipal planning boards and zoning boards of appeals to receive environmentally conscious planning training

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subparagraph (i) of paragraph (d) of subdivision 2 of
2 section 239-c of the general municipal law, as amended by chapter 662 of
3 the laws of 2006, is amended to read as follows:
4 (i) Each member of a county planning board shall complete, at a mini-
5 mum, [~~four~~] five hours of training each year designed to enable such
6 members to more effectively carry out their duties. Training received by
7 a member in excess of [~~four~~] five hours in any one year, except for
8 environmentally conscious planning training, may be carried over by the
9 member into succeeding years in order to meet the requirements of this
10 paragraph. Such training shall be approved by the county and may
11 include, but not be limited to, training provided by a regional or coun-
12 ty planning office or commission, county planning federation, state
13 agency, statewide municipal association, college or other similar enti-
14 ty. Training shall include at least one hour related to environmentally
15 conscious planning, including, but not to be limited to, training to
16 meet the goals of and compliance with the climate leadership and commu-
17 nity protection act, including any grant and funding opportunities,
18 farmland and natural resource conservation, climate justice, environ-
19 mentally conscious site design, building material techniques and water
20 mitigation and energy systems best practices. Training may be provided

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [~~-~~] is old law to be omitted.

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1 in a variety of formats, including but not limited to, electronic media,
2 video, distance learning and traditional classroom training.

3 § 2. Paragraph a of subdivision 7-a of section 27 of the general city
4 law, as added by chapter 662 of the laws of 2006, is amended to read as
5 follows:

6 a. Each member of the planning board of a city, except a city having a
7 population of more than one million, shall complete, at a minimum,
8 ~~[four]~~ five hours of training each year designed to enable such members
9 to more effectively carry out their duties. Training received by a
10 member in excess of ~~[four]~~ five hours in any one year, except for envi-
11 ronmentally conscious planning training, may be carried over by the
12 member into succeeding years in order to meet the requirements of this
13 subdivision. Such training shall be approved by the legislative body and
14 may include, but not be limited to, training provided by a municipality,
15 regional or county planning office or commission, county planning feder-
16 ation, state agency, statewide municipal association, college or other
17 similar entity. Training shall include at least one hour related to
18 environmentally conscious planning, including, but not to be limited to,
19 training to meet the goals of and compliance with the climate leadership
20 and community protection act, including any grant and funding opportu-
21 nities, farmland and natural resource conservation, climate justice,
22 environmentally conscious site design, building material techniques and
23 water mitigation and energy systems best practices. Training may be
24 provided in a variety of formats, including but not limited to, elec-
25 tronic media, video, distance learning and traditional classroom train-
26 ing.

27 § 3. Paragraph (a) of subdivision 7-a of section 81 of the general
28 city law, as added by chapter 662 of the laws of 2006, is amended to
29 read as follows:

30 (a) Each member of the board of appeals in a city, except a city
31 having a population of more than one million, shall complete, at a mini-
32 mum, ~~[four]~~ five hours of training each year designed to enable such
33 members to more effectively carry out their duties. Training received by
34 a member in excess of ~~[four]~~ five hours in any one year, except for
35 environmentally conscious planning training, may be carried over by the
36 member into succeeding years in order to meet the requirements of this
37 subdivision. Such training shall be approved by the legislative body and
38 may include, but not be limited to, training provided by a municipality,
39 regional or county planning office or commission, county planning feder-
40 ation, state agency, statewide municipal association, college or other
41 similar entity. Training shall include at least one hour related to
42 environmentally conscious planning, including, but not to be limited to,
43 training to meet the goals of and compliance with the climate leadership
44 and community protection act, including any grant and funding opportu-
45 nities, farmland and natural resource conservation, climate justice,
46 environmentally conscious site design, building material techniques and
47 water mitigation and energy systems best practices. Training may be
48 provided in a variety of formats, including but not limited to, elec-
49 tronic media, video, distance learning and traditional classroom train-
50 ing.

51 § 4. Paragraph (a) of subdivision 7-a of section 267 of the town law,
52 as added by chapter 662 of the laws of 2006, is amended to read as
53 follows:

54 (a) Each member of the board of appeals shall complete, at a minimum,
55 ~~[four]~~ five hours of training each year designed to enable such members
56 to more effectively carry out their duties. Training received by a

1 member in excess of [~~four~~] five hours in any one year, except for envi-
2 ronmentally conscious planning training, may be carried over by the
3 member into succeeding years in order to meet the requirements of this
4 subdivision. Such training shall be approved by the town board and may
5 include, but not be limited to, training provided by a municipality,
6 regional or county planning office or commission, county planning feder-
7 ation, state agency, statewide municipal association, college or other
8 similar entity. Training shall include at least one hour related to
9 environmentally conscious planning, including, but not to be limited to,
10 training to meet the goals of and compliance with the climate leadership
11 and community protection act, including any grant and funding opportu-
12 nities, farmland and natural resource conservation, climate justice,
13 environmentally conscious site design, building material techniques and
14 water mitigation and energy systems best practices. Training may be
15 provided in a variety of formats, including but not limited to, elec-
16 tronic media, video, distance learning and traditional classroom train-
17 ing.

18 § 5. Paragraph a of subdivision 7-a of section 271 of the town law,
19 as added by chapter 662 of the laws of 2006, is amended to read as
20 follows:

21 a. Each member of the planning board shall complete, at a minimum,
22 [~~four~~] five hours of training each year designed to enable such members
23 to more effectively carry out their duties. Training received by a
24 member in excess of [~~four~~] five hours in any one year, except for envi-
25 ronmentally conscious planning training, may be carried over by the
26 member into succeeding years in order to meet the requirements of this
27 subdivision. Such training shall be approved by the town board and may
28 include, but not be limited to, training provided by a municipality,
29 regional or county planning office or commission, county planning feder-
30 ation, state agency, statewide municipal association, college or other
31 similar entity. Training shall include at least one hour related to
32 environmentally conscious planning, including, but not to be limited to,
33 training to meet the goals of and compliance with the climate leadership
34 and community protection act, including any grant and funding opportu-
35 nities, farmland and natural resource conservation, climate justice,
36 environmentally conscious site design, building material techniques and
37 water mitigation and energy systems best practices. Training may be
38 provided in a variety of formats, including but not limited to, elec-
39 tronic media, video, distance learning and traditional classroom train-
40 ing.

41 § 6. Paragraph (a) of subdivision 7-a of section 7-712 of the village
42 law, as added by chapter 662 of the laws of 2006, is amended to read as
43 follows:

44 (a) Each member of the board of appeals shall complete, at a minimum,
45 [~~four~~] five hours of training each year designed to enable such members
46 to more effectively carry out their duties. Training received by a
47 member in excess of [~~four~~] five hours in any one year, except for envi-
48 ronmentally conscious planning training, may be carried over by the
49 member into succeeding years in order to meet the requirements of this
50 subdivision. Such training shall be approved by the board of trustees
51 and may include, but not be limited to, training provided by a munici-
52 pality, regional or county planning office or commission, county plan-
53 ning federation, state agency, statewide municipal association, college
54 or other similar entity. Training shall include at least one hour
55 related to environmentally conscious planning, including, but not to be
56 limited to, training to meet the goals of and compliance with the

climate leadership and community protection act, including any grant and funding opportunities, farmland and natural resource conservation, climate justice, environmentally conscious site design, building material techniques and water mitigation and energy systems best practices.

Training may be provided in a variety of formats, including but not limited to, electronic media, video, distance learning and traditional classroom training.

§ 7. Paragraph a of subdivision 7-a of section 7-718 of the village law, as added by chapter 662 of the laws of 2006, is amended to read as follows:

a. Each member of the planning board shall complete, at a minimum, ~~four~~ five hours of training each year designed to enable such members to more effectively carry out their duties. Training received by a member in excess of ~~four~~ five hours in any one year, except for environmentally conscious planning training, may be carried over by the member into succeeding years in order to meet the requirements of this subdivision. Such training shall be approved by the board of trustees and may include, but not be limited to, training provided by a municipality, regional or county planning office or commission, county planning federation, state agency, statewide municipal association, college or other similar entity. Training shall include at least one hour

related to environmentally conscious planning, including, but not to be limited to, training to meet the goals of and compliance with the climate leadership and community protection act, including any grant and funding opportunities, farmland and natural resource conservation, climate justice, environmentally conscious site design, building material techniques and water mitigation and energy systems best practices.

Training may be provided in a variety of formats, including but not limited to, electronic media, video, distance learning and traditional classroom training.

§ 8. This act shall take effect on the first of January next succeeding the date on which it shall have become a law.